

Ishwari Prasad v. U.P. Power Corporation Lucknow

Allahabad High Court · Division Bench · 20 July 2017 · Writ-C No. 31324 of 2017 · **Writ not pressed; liberty to apply after complying with Clauses 4.2 and 4.3.**

HEADNOTE

On the petitioner not pressing the writ, the Allahabad High Court disposed of the petition with liberty to approach the concerned authority afresh after complying with Clauses 4.2 and 4.3 of the Electricity Supply Code, 2005, and directed that any such application be considered and decided within ten days of presentation.

FACTUAL SUMMARY

Ishwari Prasad filed a writ petition in the Allahabad High Court against U.P. Power Corporation, Lucknow and four others. After hearing counsel for the petitioner and for respondent nos. 1 to 3, the petitioner's counsel did not press the writ and instead sought liberty to approach the concerned authority afresh after complying with all requirements under the Electricity Supply Code, 2005, in particular Clauses 4.2 and 4.3.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.2

fresh application after Code compliance

HOLDING

The writ was not pressed. The Court granted liberty to approach the concerned authority afresh after complying with all requirements of the Electricity Supply Code, 2005, in particular Clauses 4.2 and 4.3, and directed that an application so presented shall be considered and decided within ten days. ¶ 1

PRINCIPLE TAGS

fresh-application-after-code-compliance On the petitioner not pressing the writ, the Allahabad High Court disposed of the petition with liberty to approach the concerned authority afresh after complying with Clauses 4.2 and 4.3 of the Electricity Supply Code, 2005 ¶ 1